SUPREME COURT OF INDIA

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Criminal Appeal No. 841 of 2004

CNR: SCIN010008412004

Date: 18 April, 2011

Citation: (2011) 11 SCC 140

CORAM: Hon'ble P. Sathasivam & B.S. Chauhan, JJ.

Petitioner: Rathinam

- VERSUS -

Respondent: State of Tamil Nadu

DOMAIN: CRIMINAL LAW & DOWRY DEATH PRESUMPTION **STATUS: Good Law (Binding Criminal Law Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Where prosecution establishes that the death occurred within seven years of marriage under abnormal circumstances and cruelty for dowry was meted out 'soon before death', the statutory presumption under Section 113B Evidence Act operates mandatorily against the accused.

STATUTES APPLIED: Section 304B IPC, Section 498A IPC, Section 113B Evidence Act

DISPOSITION: CONVICTION UNDER SECTION 304B AND SECTION 498A IPC UPHELD

EXECUTIVE RATIO SUMMARY:

Detailed analysis of the statutory presumption under Section 113B Evidence Act in Section 304B IPC dowry death prosecutions, clarifying the temporal proximity requirement of 'soon before death'.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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